

The Payment Of Wages (Manner Of Recovery Of Excess Deductions) Rules, 1966

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The Payment Of Wages (Manner Of Recovery Of Excess Deductions) Rules, 1966

UNION OF INDIA

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The Payment Of Wages (Manner Of Recovery Of Excess Deductions) Rules, 1966

Rule THE-PAYMENT-OF-WAGES-MANNER-OF-RECOVERY-OF-EXCESS-DEDUCTIONS-RULES-1966 of 1966

Published on 7 October 1966

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The Payment Of Wages (Manner Of Recovery Of Excess Deductions) Rules, 1966

Published vide S.O. 3090, dated 7.10.1966, published in the Gazette of India, Part II, Section 3(ii), dated 15.10.1966.

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In pursuance of sub-section (3) of section 7 and in exercise of the powers conferred by sub-section (3) of section 26, read with section 24 of the Payment of Wages Act, 1936 (

4 of 1936

), the Central Government hereby makes the following rules, the same having been previously published as required by

sub-section (5) of the said section 26, namely:-

1.

Short Title, Application And Extent .-(1) These Rules May Be Called The Payment Of Wages (Manner Of Recovery Of Excess Deductions) Rules, 1966.

(2)

These rules shall apply to the persons employed on railways, mines, oil-fields and air transport services.

(3)

They extend to the whole of India, except the State of Jammu and Kashmir.

2.

Definitions .-In these rules,--

(a)

"Act" means the Payment of Wages Act, 1936 (

4 of 1936

);

(b)

"section" means a section of the Act.

3.

Manner of recovery of amount of deductions in excess of limits prescribed under sub-section (3) of section 7.-Where the total amount of deductions which have to be made under sub-section (2) of section 7 of the Act in any wage-period from the wages of any employed person exceeds the limit specified in clause (i) or, as the case may be, clause (ii) of sub-section (3) of that section, the excess shall be carried forward and recovered from the wages for the succeeding wage-period in such number of instalments, not exceeding six, as may be necessary to enable the deductions to be made in compliance with the said limits.

Illustration .-The wages of a monthly-rated employed person for January are one hundred rupees and deductions (which include deductions on account of dues of a co-operative society) amount to ninety rupees. His maximum deduction from the wage for January will be seventy-five rupees. The excess amount of fifteen rupees will be carried forward and recovered in not more than six instalments by limiting other deductions for those months so that the total deduction does not exceed seventy-five rupees in any month.

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